

9:00 AM

Line 3

25-CIV-07605 JEEWON PARK BY AND THROUGH HIS CONSERVATOR HAE SOO
PARK VS. ANTHONY DIODATI, ET AL

JEEWON PARK BY AND THROUGH HIS CONSERVATOR MARC LIBARLE
HAE SOO PARK
ANTHONY DIODATI

ROBYN H. SHIELDS

Defendant Primrose Gardens, LLC's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

The Demurrer of Defendant Primrose Gardens, LLC ("Defendant") to the First Amended Complaint ("FAC") by Jeewon Park, by and through his conservator, Hae Soo Park, ("Plaintiff") is **OVERRULED** as to the statute of limitations argument and **SUSTAINED WITH LEAVE TO AMEND** as to failure to allege facts sufficient to support a cause of action, as set forth below.

FACTUAL BACKGROUND

On November 9, 2018, Plaintiff entered into a residential lease agreement with Defendant Primrose Gardens, LLC ("Primrose"). (FAC, ¶ 7.) Before the time of entering into the lease, it was disclosed to Defendants that Plaintiff was a person with special needs and would require the presence of a caregiver at all times. (*Ibid.*) At some point during the tenancy, Defendant Diodati unilaterally relocated Plaintiff to a more isolated unit on the premises due to noise complaints allegedly stemming from Plaintiff's disability-related behaviors. (*Id.*, at ¶¶ 9, 20.)

On May 15, 2023, while Plaintiff's caregiver stepped out briefly, Defendant Diodati entered Plaintiff's unit without permission. (*Id.*, ¶ 10.) Defendant Diodati knew that Plaintiff Park was making noise due to his disability. (*Id.*, at ¶ 52.) During the unauthorized entry, Diodati allegedly assaulted and battered Plaintiff, verbally berated him, and caused Plaintiff severe emotional and physical harm. (*Id.*, ¶ 10.) Defendant Diodati continuously shouted at Plaintiff while trespassing in Plaintiff's apartment. (*Id.*, ¶ 58.) Defendant Diodati also grabbed Plaintiff with his left hand by the throat, pushed Plaintiff against the hallway wall, and held him there. (*Id.*, at ¶ 64.) After opening the door to Plaintiff's apartment, Defendant Diodati again pushed Plaintiff back into his apartment and closed the door. (*Ibid.*)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law.

(*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) When considering demurrers, courts “are required to construe the complaint liberally to determine whether a cause of action has been stated, given the assumed truth of the facts pleaded.” (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

The facts to be pleaded are those upon which liability depends—i.e., “the facts constituting the cause of action.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) These are commonly referred to as “ultimate facts.” (*Ibid.*, citing *Burks v. Poppy Construction Co.* (1962) 57 Cal.2d 463, 473–74.)

“The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The court “may consider all material facts pleaded in the complaint and those arising by reasonable implication therefrom; it may not consider contentions, deductions or conclusions of fact or law. (*Young v. Gannon* (2002) 97 Cal.App.4th 209, 220 (citing *Moore v. Conliffe* (1994) 7 Cal.4th 634, 638; *Montclair Parkowners Assn. v. City of Montclair* (1999) 76 Cal.App.4th 784, 790).)

If there is any reasonable possibility that plaintiff can cure the deficiency by amendment, then leave to amend should be granted even if the demurrer is sustained. (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.) However, where there is no reasonable possibility that amendment can cure the defects of the Complaint, a trial Court does *not* abuse its discretion by sustaining a demurrer without leave to amend. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) It is Plaintiff’s burden to prove such reasonable possibility. (*Ibid.*)

Since a general demurrer “admits the truth of all material factual allegations in the complaint,” a plaintiff’s ability to prove these allegations “does not concern the reviewing court. The plaintiff need only plead facts showing that they may be entitled to some relief.” (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (internal quotations omitted) (superseded by statute on other grounds).)

LEGAL ANALYSIS

The FAC alleges the First through Eleventh Causes of Action against this Defendant. First, Defendant demurs that certain causes of action are barred by the applicable statutes of limitations. Second, Defendant demurs that certain causes of action fail to allege facts sufficient to support these causes of action.

Statutes of Limitations

Defendant contends that the First, Second, Third, Fifth, Sixth, Ninth and Tenth Causes of Action are barred by the two-year statutes of limitations that govern these claims. (See Code Civ. Proc., § 335.1; Gov. Code, § 12989.1, subd. (a); 42 U.S.C.A. § 3613.) Defendant contends that the last date alleged in the Complaint and FAC is May 15, 2023, and thus more than two years passed

before the filing of the Complaint on September 29, 2025.

For a demurrer to be sustained based on the statute of limitations, it must clearly and affirmatively appear on the face of the complaint that the action is barred. (*Citizens for a Responsible Caltrans Decision v. Department of Transportation* (2020) 46 Cal.App.5th 1103, 1116–1117.) The demurrer will be overruled when the relevant facts are not clear such that the cause of action might be, but is not necessarily time-barred. (*Id.*, at p. 1117.)

“If a person entitled to bring an action, mentioned in Chapter 3 (commencing with Section 335) is, at the time the cause of action accrued either under the age of majority or lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action.” (Code Civ. Proc., § 352, subd. (a).)

California follows the general rule that the statute of limitations periods applicable to an incompetent’s actions for injuries will not begin so long as the incompetence continues. (*Tzolov v. International Jet Leasing, Inc.* (1991) 232 Cal.App.3d 117, 118 (*Tzolov*)).

The FAC alleges that at all relevant times, Plaintiff was subject to a conservatorship and thus did not have the legal capacity to make decisions. (FAC, ¶ 1.) Defendant argues that merely alleging Plaintiff lacks legal capacity because he is a conservatee is insufficient and that Plaintiff must allege facts to support a lack of legal capacity. However, Defendant does not cite any authority to support what other facts must be alleged. (See Defendant’s Reply, p. 2:12-17.)

Moreover, *Tzolov* is persuasive. In *Tzolov*, the plaintiff was rendered incompetent by grave head injuries from an accident in 1983. (*Tzolov, supra*, 232 Cal.App.3d at p. 119.) His incompetence continued thereafter. (*Ibid.*) On January 23, 1984, he filed an action for injuries against the defendants and his mother was appointed guardian ad litem. (*Ibid.*) The plaintiff then filed a second action against different defendants, and in November 1984 he voluntarily dismissed the second action with prejudice. (*Ibid.*) The trial court then dismissed the first action for failure to serve the summons and complaint within three years after commencing the action, and the Court of Appeal affirmed the dismissal. (*Ibid.*) In 1990, the plaintiff filed a new action against the same defendants in the first action. (*Ibid.*) The defendant demurred and moved to strike on the basis that the third action was barred by judgment in the first action and a one-year statute of limitations that ran once the plaintiff’s guardian ad litem was appointed. (*Ibid.*) The trial court granted the motion to strike and dismissed the action. (*Ibid.*) The Court of Appeal reversed, finding that the applicable limitation period will not run against an incompetent plaintiff simply because the plaintiff has a general guardian. (*Id.* at p. 120.) The court reasoned that Code of Civil Procedure section 352 refers only to the plaintiff’s competence and not to the nature or quality of his or her representation. (*Ibid.*) As such, the court concluded that the statute suggests no reason why appointment of a guardian ad litem should be treated differently than the appointment of a general guardian, and that the cause of action belongs to the plaintiff. (*Ibid.*) “The possibility that in a case such as this a limitation period may remain open for the lifetime of the plaintiff does not dictate a different result: The tolling statute reflects a considered legislative judgment that in enumerated circumstances the strong policy in favor of prompt disposition of disputes must give

way to the need to protect a plaintiff who is unable to protect himself or herself.” (*Ibid.*)

Based on the allegations that Plaintiff was under a conservatorship and lacked legal capacity at all relevant times, the court finds it is not clear that these causes of action are time barred. In other words, Defendant fails to show from the face of the FAC and from the matters of which Defendant requests judicial notice that these causes of action are clearly time barred.

The Demurrer to the First, Second, Third, Fifth, Sixth, Ninth and Tenth Causes of Action as barred by the applicable statutes of limitations is **OVERRULED**.

Failure to allege facts sufficient to support a cause of action

Defendant demurs that the First, Third, Fourth, Fifth, Sixth, Seventh and Eleventh Causes of Action fail to allege facts sufficient to support these causes of action. (See Code Civ. Proc., § 430.10, subd. (e).)

In response, Plaintiff claims that the proposed Second Amended Complaint cures Defendant’s objections to these causes of action. However, Plaintiff failed to provide a copy of the proposed Second Amended Complaint with its opposition, as claimed.

Defendant acknowledges that it also did not receive a copy of the proposed Second Amended Complaint with Plaintiff’s opposition. Nevertheless, Defendant asserts it is likely the proposed Second Amended Complaint fails to address the deficiencies. However, leave to amend is liberally granted if a fair opportunity to correct any defect has not been given. (*Angie M. v. Sup.Ct. (Hiemstra)* (1995) 37 Cal.App.4th 1217, 1227.)

Accordingly, the Demurrer to the First, Third, Fourth, Fifth, Sixth, Seventh and Eleventh Causes of Action based on failure to allege facts sufficient to support these causes of action is **SUSTAINED WITH LEAVE TO AMEND** for Plaintiff to file and serve his proposed Second Amended Complaint.

Request for Judicial Notice

Defendant’s unopposed Request for Judicial Notice is **GRANTED**.

Leave to Amend

Plaintiff has ten days to file and serve the Second Amended Complaint from service of written notice of entry of order by both demurring defendants Primrose and Diodati.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

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ROBYN H. SHIELDS

Defendant Anthony Diodati's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Anthony Diodati's demurrer to the First Amended Complaint ("FAC") of Jeewon Park, by and through his conservator, Hae Soo Park, is:

- OVERRULED as to Plaintiff's claims for Intentional Infliction of Emotional Distress ("IIED"), Trespass, Assault, and Battery;
- SUSTAINED, with leave to amend, as to Plaintiff's claims for Negligence, Housing Discrimination, Violation of Fair Housing Act, and Unlawful Business Practices; and
- SUSTAINED, without leave to amend, as to Plaintiff's claims for Negligent Hiring/Supervision/Retention and Breach of Covenant of Quiet Enjoyment.

Plaintiff shall file an amended complaint, if any, within 10 days of receiving notice of entry of this order *and* notice of entry of this Court's order on Defendant Primrose Gardens LLC's demurrer. The 10-day deadline shall not be triggered until Plaintiff receives notice of entry of both orders.

Plaintiff has not opposed this motion. Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) However, "the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.21 (Thomson Reuters Apr. 2025 update).) Therefore, the Court has substantively reviewed Defendant's demurrer and motion to strike.
